

TENTATIVE RULING FOR JUNE 9, 2026

Department R12 - Judge Kory Mathewson

Midland Credit management, Inc., v. Erick J Carranza – CIVRS2509392

Motion: Demurrer

Movant: Defendant, Erick Carranza

Respondent: Plaintiff, Midland Credit Management

RULING: Demurrer is SUSTAINED, with Leave to Amend within 30 days.

Defendant - to provide Order(s) and give Notice.

Defendant has adequately attempted to meet and confer per Counsel's declaration at ¶¶ 4-7.

To the Demurrer, Plaintiff has alleged a single count of breach of contract. Plaintiff attaches only a single billing statement (Compl. ¶10; Exh. A) that does not provide a copy of the contract at issue, and only generally pleads in the body of the complaint that "under the terms of the agreement, CITIBANK, N.A. agreed to provide Consumer Credit Card funds to Defendant, who agreed to repay amounts advanced, including interest, fees, and other charges pursuant to the agreement." (Compl. ¶15, also ¶16). Without an attached contract, the pleadings contractual terms are vague, conclusory and lacks specificity.

Plaintiff does not oppose. Therefore the demurrer is sustained, but with leave to amend, as the pleading may be easily corrected or addressed more thoroughly.

Defendant further asserts that Plaintiff does not plead facts showing an assignment of the contract itself. Plaintiff, however, does allege that Plaintiff is the sole owner of the account and purchased the debt from Citibank. Plaintiff is not alleging it was assigned certain rights, it alleging it owns all the rights solely. Therefore, on these grounds, the pleading is sufficient.

Dated: June 9, 2026

Judge Kory Mathewson